

Safiur Rahama v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 August 2022 · Writ-C No. 22399 of 2022 · **Writ disposed; liberty to file Para 6.8 objection with eight-week stay of coercive action.**

HEADNOTE

Without opinion on merits, a challenge to a provisional assessment dated 6 December 2019 and demand notice dated 15 July 2021 was disposed of with liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks. If filed, the distribution licensee must decide it in accordance with law within the next four weeks after hearing. Coercive action on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Safiur Rahama petitioned the High Court to quash a provisional assessment dated 6 December 2019 and a demand notice dated 15 July 2021 issued by the Executive Engineer, Vidyut Vitran Khand-III, Ghosi, District Mau, and to restrain coercive recovery on those instruments. Counsel for the power distribution corporation stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to provisional assessment and demand

HOLDING

Without expressing any opinion on merits, a writ challenging a provisional assessment and demand notice is disposed of with liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if so submitted, the licensee shall decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing, and no coercive action shall be taken for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The Court directed the consumer to file a Para 6.8 objection to the provisional assessment and demand, required time-bound disposal after hearing, and stayed coercive action pending that disposal. ¶ 4-5

para-6.8-objection-alternate-remedy The writ was not decided on merits; the petitioner was relegated to the statutory objection under Para 6.8 of the Supply Code. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE PROVISIONAL ASSESSMENT DATED 06.12.2019 AND DEMAND NOTICE DATED 15.07.2021

The Court expressly declined to opine on merits and left the objection to be decided by the licensee under Para 6.8. ¶ 4